CITY OF DUVALL
WASHINGTON

RESOLUTION NO. 23-07

A RESOLUTION OF THE CITY COUNCIL OF THE CITY OF DUVALL, WASHINGTON, RESCINDING RESOLUTION NOS. 20-03, 20-04, AND 21-12 RELATED TO THE COVID-19 DECLARATION OF EMERGENCY.

WHEREAS, according to RCW 38.52.070, the Mayor of Duvall declared an emergency on March 4, 2020, through Resolution No. 20-03, to protect public health and our employees as necessary and allow for the purchasing of supplies and contracting for services that may be needed urgently without opportunity for a budget amendment to manage the novel coronavirus COVID-19; and

WHEREAS, on March 17, 2020**,** the Duvall City Council affirmed the Mayor's Declaration of Emergency related to the novel coronavirus COVID-19 to address the significant health emergency presented by the COVID-19 virus in Resolution No. 20-04; and

WHEREAS, on August 18, 2021**,** the Duvall City Council passed Resolution 21-12 to require COVID vaccination as a condition of employment; and

WHEREAS the measures put in place by the City Council and the Mayor of Duvall, along with the vaccination requirements of the State of Washington, King County, and the City of Duvall, resulted in one of the highest vaccination rates in the State of Washington for City employees and protected the community from the adverse effects of the COVID-19 virus; and

WHEREAS the medical community, along with the Centers for Disease Control, has indicated that COVID-19 is likely to be endemic, meaning that COVID-19 will remain a permanent, yet manageable, part of daily life and because approximately 95% of people in the United States has some form of immunity, the public health emergency has dissipated; and

WHEREAS, on October 31, 2022, Governor Jay Inslee terminated the COVID-19 State of Emergency proclaimed in Proclamation 20-05 and rescinded all COVID-19 emergency proclamations issued under Proclamation 20-05; and

WHEREAS, on February 6, 2023, King County Executive Dow Constantine terminated the COVID-19 State of Emergency proclaimed in Executive Order ACO-8-27-EO and rescinded all COVID-19-related proclamations; and

WHEREAS, while the use of the Mayor's emergency powers is no longer needed to manage the risks of COVID-19, the City of Duvall recommends that all City employees and eligible residents remain up to date with boosters and to continue the use of treatments and preventative measures to lower the risk of severe illness, hospitalization or death from COVID-19; and

WHEREAS the City shall monitor future guidance and directives from Public Health – Seattle & King County, as well as County, State, and Federal government agencies to determine

if termination or supplementation of this Resolution, as well as the prior COVID-19, related Resolutions.

NOW, THEREFORE, THE CITY COUNCIL OF THE CITY OF DUVALL, WASHINGTON, HEREBY RESOLVES AS FOLLOWS:

The City Council declares that the use of emergency powers in accordance with RCW 38.52.070 and RCW 39.04.280 to manage the risk of COVID-19 no longer appears necessary; and because City residents and employees can elect to stay up to date with boosters to lower the risk of severe illness, hospitalization, or death from COVID-19, it is appropriate to terminate the requirements and conditions as set forth in Resolution Nos. 20-03, 20-04, and 21-12.

PASSED BY THE CITY COUNCIL AT A REGULAR MEETING THEREOF ON THE 20TH DAY OF JUNE 2023.

CITY OF DUVALL

Approved as to form:

Amy Ockerlander (Jun 21, 2023 13:26 PDT)

Mayor Amy Ockerlander

Daniel Kenny (Jun 22, 2023 08:09 PDT)

City Attorney

ATTEST/AUTHENTICATED

John Botero, City Clerk

Res 23-07 Rescinding Emergency Declaration_COVID19

Final Audit Report 2023-06-22

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